

THE CORPORATION OF THE TOWNSHIP OF STONE MILLS
BY-LAW NO. 2015-801

Being a By-law to Regulate the Operation of Off-Road Vehicles on Municipal
Highways within the Township of Stone Mills

WHEREAS pursuant to Section 191.8 (3) of the Highway Traffic Act, R.S.O 1990, c.8, as amended, the Council of a municipality may pass by-laws permitting the operation and regulating the rate of speed of off-road vehicles on any highway within the municipality that is under the jurisdiction of the municipality, or on any part or parts of such highway:

AND WHEREAS pursuant to Section 191.8 (4) of the Highway Traffic Act, R.S.O. 1990, c.8, as amended, a by-law passed under subsection 191.8 (3) of the Highway Traffic Act may permit the operation of off-road vehicles on any highway or on any part or parts of a highway only during specified months or hours:

AND WHEREAS Ontario Regulation 316/03, as amended, applies to the operation of off-road vehicles on highways;

WHEREAS Council deems it expedient to pass a by-law to regulate the operation of off-road vehicles on highways under the jurisdiction of the municipality;

NOW THEREFORE the Council of The Corporation of the Township of Stone Mills enacts as follows:

1. DEFINITIONS

In this By-Law,

- 1.1 "All-Terrain Vehicle" means an Off-Road Vehicle that,
- (a) has four wheels, the tires of which are all in contact with the ground,
 - (b) has steering handlebars,
 - (c) has a seat that is designed to be straddled by the driver, and
 - (d) is designed to carry,
 - (i) a driver only and no passengers, or
 - (ii) a driver and only one passenger, if the vehicle,
 - (A) has one passenger seat that is designed to be straddled by the passenger while sitting facing forward behind the driver, and
 - (B) is equipped with foot rests for the passenger that are separate from the foot rests for the driver;
- 1.2 **"Highway"** includes a common and public highway, street, road, avenue, parkway, and laneway, any part of which is maintained by and under the jurisdiction of the municipality and which is used by the general public for the passage of vehicles and includes the area between the lateral lines thereof. Specifically excluded are any highways under the jurisdiction of the County of Lennox & Addington (County Roads # 1, 4, 6, 11, 13, 14, 15, 17, 27 & 41)(refer to the County of Lennox and Addington Off Road Vehicle By-law)
- 1.3. **"Low Pressure Bearing Tire"** means wide, balloon type tire with a rounded cross section and no distinct shoulder area and that is designed to operate with inflation pressures of no greater than 70 kpa (10 psi).

1.4 **"Multi-Purpose Off-Highway Utility Vehicle"** means an Off-Road Vehicle that,

- (a) has four or more wheels, the tires of which are all in contact with the ground,
- (b) has a steering wheel for steering control,
- (c) has seats that are not designed to be straddled, and
- (d) has a minimum cargo capacity of 159 kilograms.

1.5 **"Municipality"** means The Corporation of the Township of Stone Mills

1.6 **"Off-Road Vehicle"** has the same meaning as in the Off-Road Vehicles Act, R.S.O. 1990, c. 0.4, being, a vehicle propelled or driven otherwise than by muscular power or wind and designed to travel, (a) on not more than three wheels, or (b) on more than three wheels and being of a prescribed class of vehicle.

1.7 **"Recreational Off-Highway Vehicle"** means an Off-Road Vehicle that,
(a) has four or more wheels, the tires of which are all in contact with the ground,
(b) has a steering wheel for steering control,
(c) has seats that are not designed to be straddled, and
(d) has an engine displacement equal to or less than 1,000 cubic centimeters.

2. GENERAL

2.1 Off-Road Vehicles shall only be operated upon highways within the municipality in accordance with this by-law, Ontario Regulation 316/03 as amended, the Highway Traffic Act, R.S.O 1990, c. H.8, as amended and the Off-Road Vehicles Act, R.S.O. 1990, c. 0.4 as amended.

3. REGULATION OF OFF-ROAD VEHICLES ON MUNICIPAL HIGHWAYS

3.1 An Off-Road Vehicle operated on a highway within the municipality must meet the equipment requirements of Sections 7 to 15 of Ontario Regulation 316/03, as amended and be operated in accordance with Sections 16 to 24 of Ontario Regulation 316/03, as amended.

3.2 An Off-Road Vehicle shall not be driven on a highway at a rate of speed greater than:

3.2.1 20 kilometres per hour, if the speed limit established under the Highway Traffic Act or by municipal by-law for that part of the highway is not greater than 50 kilometres per hour, or

3.2.2 50 kilometres per hour, if the speed limit established under the Highway Traffic Act or by municipal by-law for that part of the highway is greater than 50 kilometres per hour.

3.3 An Off-Road Vehicle shall not be operated on any highways between the hours of 10:00 p.m. and 6:00 a.m. of the next day.

4. PENALTIES

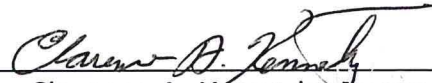
- 4.1 Any person who contravenes any section of this by-law is guilty of an offence, and upon conviction, is liable to a fine as provided for in the Provincial Offences Act, R.S.O. 1990, c. P.33., as amended.

5. BY-LAW REPEALED

- 5.1 That By-law No. 2006-335 and any other by-law or portions thereof conflicting with this by-law are hereby repealed.

6. EFFECTIVE DATE

- 6.1 This by-law shall come into force and take effect on the day of its passing. Read a first and second time and finally passed this 5th day of October, 2015


Clarence A. Kennedy, Reeve


Bryan Brooks, C.A.O./Clerk